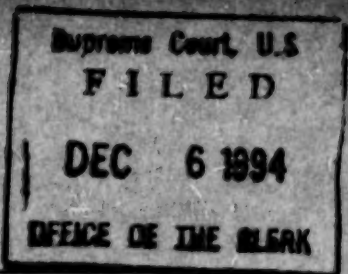


(10)
No. 93-1823



In The
Supreme Court of the United States
October Term, 1994

STATE OF MISSOURI, *et al.*,

Petitioners,

v.

KALIMA JENKINS, *et al.*,

Respondents.

On Writ Of Certiorari
To The United States Court Of Appeals
For The Eighth Circuit

BRIEF OF RESPONDENTS JENKINS, ET AL.

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COUNTERSTATEMENT OF QUESTIONS PRESENTED

1. Whether the lower courts, in a case of prolonged State-mandated racial segregation with devastating effects on the educational opportunities available to the plaintiff schoolchildren, acted within their discretion in refusing to terminate remedial educational improvement programs as "unitary" where they found that the defendant seeking termination had not shown (1) that the vestiges of segregation which such programs were designed to remedy had been eliminated to the extent practicable or (2) that release of jurisdiction in these areas would not have adverse consequences on other admittedly non-unitary aspects of the school system; and where there was no evidence (3) that the defendant seeking such termination had demonstrated a good faith commitment to its constitutional obligation.

2. Whether the lower courts acted within their discretion to extend orders mandating that the State defendants help maintain school district salaries for non-instructional personnel at levels repeatedly found necessary to successful implementation of a largely voluntary desegregation plan, where the deplorably low original salaries were in part the result of the State's constitutional violation affecting school district funding.

TABLE OF CONTENTS

	Page
COUNTERSTATEMENT OF QUESTIONS PRESENTED	i
TABLE OF CONTENTS	ii
TABLE OF AUTHORITIES	v
INTRODUCTION	1
COUNTERSTATEMENT OF THE CASE	2
A. Decisions Preceding the Orders at Issue	2
B. Findings Supporting the Orders at Issue	5
C. Findings that the Remedy's Four Components Are Necessary to Achieve its Desegregation and Educational Improvement Goals	7
D. Findings that the Violation Segregated Blacks Within the KCMSD and Caused a System-wide Reduction in Educational Achievement in the KCMSD	14
SUMMARY OF ARGUMENT	21
ARGUMENT	24
I. THE COURT OF APPEALS PROPERLY APPLIED FREEMAN IN RENEWING THE TWO CHALLENGED ASPECTS OF THE DESEGREGATION REMEDY	24
A. Missouri Did Not Establish that the Educational Programs Met the <i>Freeman</i> Standard for Termination	25

TABLE OF CONTENTS – Continued

	Page
B. The Salary Supplements Ordered for Non-Instructional Personnel Are Necessary to Effectuate the Remedy and Are Compelled by Fact Findings Not Challenged by Missouri	27
C. The Lower Courts' Focus, <i>Inter Alia</i> , on Whether Missouri Demonstrated the Effectiveness of the Two Aspects of the Remedy that it Sought to Terminate Is Wholly Consistent With Longstanding Case Law	29
II. THE MEANS THE DISTRICT COURT ADOPTED TO REMEDY THE EFFECTS OF THE CONSTITUTIONAL VIOLATION ARE WELL WITHIN THAT COURT'S AUTHORITY	31
A. Eliminating Educational Harms Caused by State-Sponsored Segregation Is an Appropriate Remedial Focus of a Desegregation Plan	31
B. The Harms Cured by the Educational Programs Here Are Causally Related to the Violation, and the Programs' Appropriateness Has Not Been Undermined by the Passage of Time	35
C. The Use of Magnet Schools to Remedy the Segregative Vestiges of the Violation Is Appropriate	40

TABLE OF CONTENTS – Continued

	Page
III. THE TWO GOALS OF THE REMEDY – TO DESEGREGATE AND TO ALLEVIATE EDUCATIONAL HARMS – ARE PRECISELY TAILORED TO CURE THE EFFECTS OF THE VIOLATION	44
IV. MISSOURI PROVIDES NO BASIS FOR INTERFERING WITH A REMEDIAL PROCESS THAT IS WORKING IN AN APPROPRIATE AND ORDERLY FASHION TOWARDS AN EFFECTIVE AND TIMELY CONCLUSION	49
CONCLUSION	50

TABLE OF AUTHORITIES

	Page
CASES	
<i>Arthur v. Nyquist</i> , 712 F.2d 809 (2d Cir. 1983).....	6
<i>Board of Education of Oklahoma City v. Dowell</i> , 498 U.S. 237 (1991)	30, 35, 36
<i>Brown v. Board of Education</i> , 347 U.S. 483 (1954) (Brown I)	17, 39
<i>Brown v. Board of Education</i> , 349 U.S. 294 (1955) (Brown II)	2, 22, 23, 30, 31
<i>Columbus Bd of Educ. v. Penick</i> , 443 U.S. 449 (1979)	23, 37, 38
<i>Davis v. Board of Sch. Commissioners</i> , 402 U.S. 33 (1971)	30
<i>Dayton Bd. of Ed. v. Brinkman</i> , 433 U.S. 416 (1977) (Dayton I)	36, 37
<i>Dayton Board of Educ. v. Brinkman</i> , 443 U.S. 526 (1979) (Dayton II)	23, 30, 37, 39
<i>Evans v. Buchanan</i> , 582 F.2d 768 (3d Cir. 1978).....	35
<i>Freeman v. Pitts</i> , ___ U.S. ___, 112 S.Ct. 1430 (1992) <i>passim</i>	
<i>Goodman v. Lukens Steel, Col.</i> , 482 U.S. 656 (1987)	42
<i>Green v. County Sch. Bd.</i> , 391 U.S. 430 (1968)	23, 30, 32, 33, 43
<i>Hecht v. Bowles</i> , 321 U.S. 321 (1944)	32
<i>Hills v. Gautreaux</i> , 425 U.S. 284 (1976)	23, 48
<i>Hutto v. Finney</i> , 437 U.S. 678 (1978)	28
<i>Jenkins v. Missouri</i> , 807 F.2d 657 (8th Cir. 1986), cert. denied, 484 U.S. 816 (1987)	4, 9, 13

TABLE OF AUTHORITIES - Continued

	Page
<i>Jenkins v. Missouri</i> , 855 F.2d 1295 (8th Cir. 1988), cert denied in part, 490 U.S. 1034 (1989) and aff'd in part, 495 U.S. 33 (1990)	passim
<i>Jenkins v. Missouri</i> , No. 94-1405 (8th Cir. Oct. 13, 1994).....	13
<i>Milliken v. Bradley</i> , 418 U.S. 717 (1974) (<i>Milliken I</i>)	23, 40, 47, 48, 49
<i>Milliken v. Bradley</i> , 433 U.S. 267 (1977) (<i>Milliken II</i>) ..	passim
<i>Monroe v. Board of Commissioners</i> , 391 U.S. 450 (1968)	43
<i>Oliver v. Kalamazoo Board of Education</i> , 640 F.2d 782 (6th Cir. 1980).....	35
<i>Parents for Quality Education with Integration, Inc. v.</i> <i>State of Ind.</i> , 977 F.2d 1207 (7th Cir. 1992).....	35
<i>Pasadena City Bd. of Education v. Spangler</i> , 427 U.S. 424 (1976).....	45
<i>Swann v. Charlotte-Mecklenberg Bd of Ed.</i> , 402 U.S. 1 (1971)	30, 32, 44
<i>Tasby v. Black Coalition to Maximize Education</i> , 771 F.2d 853 (5th Cir. 1985).....	35
<i>United States v. Fordice</i> , 112 S.Ct. 2727 (1992)	38
<i>United States v. Montgomery County Bd of Education</i> , 395 U.S. 225 (1969)	33
<i>Washington State Fishing Vessel Ass'n v. United</i> <i>States</i> , 443 U.S. 658 (1979)	32
 CONSTITUTIONAL PROVISIONS	
Mo. Const. 1865, art. 9, § 2	14
Mo. Const. 1875, art. 11, § 3	14

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BRIEF OF RESPONDENTS JENKINS, ET AL.

INTRODUCTION

Missouri¹ sought and secured certiorari on the propriety of extending two specific aspects of the desegregation remedy ordered below for the Kansas City, Missouri School District.² Missouri's brief devotes only a few

¹ Petitioners, individual officers of the State of Missouri, are referred to collectively as "Missouri" or "the State."

² The respondent superintendent and board members of the School District of Kansas City, Missouri, and the district itself, are referred to collectively as "KCMSD" or "the district." This brief is filed on behalf of the Jenkins Respondents, the plaintiff schoolchildren below.

pages to those issues. Reflecting the weakness of the argument on which Missouri relied in its certiorari petition, the remainder of its brief seeks review of a set of issues on which the Court has *not* granted certiorari and would be unwise to do so – namely, (1) ten-year-old fact findings of two courts below as to the violation and its effects (which Missouri never appealed to this Court), (2) the basic components of the remedy (which this Court declined to review five years ago), (3) the validity of the Court's doctrine governing school desegregation remedies reaching back to its second *Brown* decision,³ and (4) whether to abandon the recently announced rule of *Freeman v. Pitts*, 112 S.Ct. 1430 (1992), governing when desegregation remedies should end. The respondent Kansas City schoolchildren demonstrate herein the propriety of the specific remedial orders on which certiorari *was* granted and the strong bases in the record before the Court for eschewing review of factual and legal questions on which certiorari was *not* granted.

COUNTERSTATEMENT OF THE CASE

A. Decisions Preceding the Orders at Issue

In 1984, the district court ruled that Missouri and the Kansas City, Missouri School District (KCMSD) intentionally segregated black and white public schoolchildren from the 1860s through the date of the court's order.⁴ The

³ *Brown v. Board of Education*, 349 U.S. 294 (1955).

⁴ The KCMSD has 37,000 students and is primarily located in the City of Kansas City, Missouri. The district's boundaries

court found that defendants' violations (1) concentrated black children inside and white children outside the KCMSD, and (2) reduced educational attainment, first for KCMSD's black students and ultimately for all pupils in the district, resulting (as the district court later described it) in a "system wide reduction in student achievement."⁵ Neither defendant appealed the district court's violation and effects findings.

The district court held the KCMSD and State defendants jointly and severally liable for remedying the constitutional violations. It ordered a desegregation plan that, to the extent practicable, would (1) "generate voluntary student transfers resulting in greater desegregation in the [KCMSD's] schools" and (2) "improv[e] the educational lot of the victims of unconstitutional segregation." 855 F.2d at 1302, *quoting* district court Order of Nov. 12, 1986, at 3. After lengthy hearings, the district court found that a remedy capable of achieving these two goals required four components – educational improvements, magnet schools, capital improvements, and a

are not coterminous with those of the City, however, which contains thirteen school districts in whole or in part. The student enrollment of the KCMSD is 68.8% African-American; that of the other twelve districts in the City is predominately white. P.Exs.9, 36, 53G.

⁵ The violation and effects findings are discussed *infra* pp. 14-21.

voluntary interdistrict transfer program.⁶ J.A. at 61-80, 86-92.⁷ The court of appeals affirmed. 807 F.2d at 684-686.

While portions of the educational improvements plan were implemented in 1985, the full complement of magnet schools was not operating in all grades until September 1994. In 1993, the district court found that the plan had achieved "substantial progress toward desegregating the schools" in the KCMSD, and that the "evidence is clear that there has been a trend of improvement in the academic achievement in the KCMSD."⁸ Pet.A. at 129, 131. Based on this progress, the

⁶ The findings that the nature and scope of the violation dictated the remedy's desegregative and educational improvement goals and that those goals dictated the four components of the remedy are discussed *infra* pp. 7-21.

⁷ The Joint Appendix is cited as J.A. at ____; the petition for a writ of certiorari as Pet. at ____; the appendix to the petition for a writ of certiorari is cited as Pet.A. at ____; and petitioners' brief as Pet.Br. at ____.

⁸ Between 1955 and 1984, the average yearly increase in the proportion of black students in the KCMSD was 1.7 percentage points (total increase was 48.8 percentage points), with yearly increases of 2 and even 3 percentage points being common in the decade and a half before the liability finding. Ex.K2. During the 10 years that the desegregation plan has been in effect, the yearly increase has been one-tenth of a percentage point (total increase, 1.1%) due mainly to hundreds of white students whom the plan has attracted into the district's schools. KCMSD Ex.39 (Jan. 27, 1993); KCMSD Ex.102 (Feb. 26, 1993). The district court based its finding that the remedy is improving academic attainment within the KCMSD on evidence of student progress and accomplishments in reading, math, science, foreign language fluency, engineering and agribusiness programs, and the arts. KCMSD Exs.28A-B, Tr. at 606 (Jan. 27, 1993); Tr. at 134-250 (Jan. 25, 1993); Tr. at 514-556 (Jan. 26, 1993); Tr. at 948-1035 (Jan. 28, 1993); Tr. at 1492-1535 (Feb. 2, 1993).

court ordered the parties to begin planning for the orderly termination of the judicial remedy, J.A. at 140-41, though none of the defendants had (or has since) filed a motion for full or partial "unitary status".

B. Findings Supporting the Orders at Issue

Since 1985, the district court has conducted periodic reviews (usually, at two-year intervals) of various components of the remedy. In 1992, following hearings on two such periodic reviews, the district court ordered the continuation of two aspects of the remedy – the educational improvement plan as a whole and the salary supplement aspect of that plan.⁹ Pet.A at 69, 76.

The court of appeals affirmed the one-year continuation of the educational improvement programs because Missouri had not met, or even attempted to meet, its burden under *Freeman v. Pitts*, 112 S.Ct. 1430 (1992), of proving partial unitary status with regard to those programs. Pet.A. at 19. In affirming, the court of appeals rejected Missouri's contentions for three reasons: (1) Missouri presented no evidence either demonstrating the extent to which the educational improvement "programs had succeeded in improving student achievement" or establishing the State's good faith implementation of the remedy. Pet.A. at 21. (2) Consequently, the "record fell far short of establishing" that the educational-harm effects of

⁹ In 1987, the district court ordered that the salaries of certain district employees be supplemented to an extent necessary to implement the educational improvement programs. J.A. at 235.

the violation had been eliminated to the extent practicable and that termination was otherwise appropriate under *Freeman*. *Id.* at 19. (3) Contrary to Missouri's claim, the sole criterion for deciding whether to continue the educational improvements plan was not whether all parts of the plan had begun operating, but rather the factors set out in *Freeman*. *Id.* at 18-19. In some "further words," the court of appeals said that the "success of quality of education programs must be measured by their effect on the students" whose educational attainment had been diminished by the defendants' unlawful racial segregation, but left the district court following a hearing to determine how to analyze such effects. *Id.* at 21.

The district court evaluated the request for a salary supplement extension under the rule that mandatory expenditures must " 'materially aid the success of the overall desegregation effort.' " *Pet.A.* at 87, quoting *Arthur v. Nyquist*, 712 F.2d 809, 813 (2d Cir. 1983). This test was satisfied, the court found, because "high quality personnel are [a] necessary" means to achieve the remedy's improved education and desegregation goals and because the 24%-plus drop in salaries that termination of the supplement would have caused would so "drastically impair the implementation of the desegregation plan" that the school district would be unable to "achieve the objectives of the desegregation plan." *Pet.A.* at 88, 91. The court of appeals affirmed because the district court had found as fact that the salary order was necessary to effectuate the educational improvement and magnet components of the remedy, which in turn were necessary to achieve the remedy's educational improvement and desegregation goals, and because Missouri made "no

claim" on appeal "that the findings of fact of the district court [were] clearly erroneous." *Id.* at 24-27.

C. Findings that the Remedy's Four Components Are Necessary to Achieve its Desegregation and Educational Improvement Goals

The preceding description of the time-limited extensions of the educational improvements plan and salary supplement exhausts the facts needed to address the issues on which the Court granted certiorari, namely, whether those extensions were within the lower courts' discretion. Missouri devotes only a handful of pages in its brief to these issues. Many additional pages are spent on the question whether the four components of the remedy (educational improvements, magnet schools, capital improvements, and voluntary interdistrict transfers) are proper means of achieving the remedy's desegregation and educational improvement goals.¹⁰ This Court has previously denied review of the lower courts' orders implementing this basic remedial design, 490 U.S. 1034 (1989), and it has not directed the parties to the present proceeding to address questions other than those presented by the Petition. Because Missouri inaccurately portrays the record relating to the remedy's basic components, we here describe the findings supporting the prior determinations below that each of the four components is necessary and appropriate to redress the

¹⁰ See Petitioners' Brief at 21 (challenging the educational improvements programs); *id.* at 30 (challenging the magnet schools component); *id.* at 11-12 (capital improvements component); *id.* at 28, 31 (voluntary transfer program).

dual harms flowing from the constitutional violations: (1) segregation of black schoolchildren within the KCMSD (ultimately contributing to the increasing predominance of black pupils in the district's total enrollment), and (2) the accompanying discriminatory denial to these children of even adequate, much less equal, education (ultimately resulting in a system-wide reduction in educational attainment within the district).¹¹

1. Many of the educational improvement programs that Missouri now challenges were adopted at Missouri's request in 1985. "[T]he State of Missouri . . . endorse[d] achieving AAA status, reducing class size at the elementary and secondary level, summer school, full day kindergarten, before and after school tutoring and early childhood development programs." J.A. at 61. Missouri "proposed [these] program components" with the specific goal of "increas[ing] student achievement." J.A. at 59. Missouri contended that a plan should have as its first goal "the creation of a unitary school district through maximum desegregation and through improvement of academic achievement," and claimed that its proposals were best suited to remove the "deep-rooted educational disadvantages within the KCMSD" by fostering "improved academic achievement." Doc. 1074 at 2, 5-6.

The district court included six programs in its educational improvements plan based on their demonstrated capacity to "be effective in the real world." J.A. at 101. (a) The court adopted an "effective schools" instructional

¹¹ The fact findings and evidence establishing these dual harms are discussed *infra* pp.14-21.

program because it had "shown significant promise as a means of remedying many of the educational problems which go hand in hand with racially isolated minority student populations." J.A. at 59. See J.A. at 60 (crediting Missouri's expert testimony that "effective schools" programs had "proven successful in [other] school districts undergoing desegregation"). (b) The district court agreed with Missouri and its expert witnesses that a class size reduction program was "an essential part of any plan to remedy the vestiges of segregation in the KCMSD." J.A. at 67. (c) The court adopted a summer school program based on Missouri's expert testimony that the program was an "important component in an overall desegregation plan" to improve "the academic achievement of students within KCMSD." J.A. at 71. (d) The district court adopted Missouri's "carefully defined and comprehensive" early childhood development program based on expert testimony that "early language development program[s]" in desegregation plans in other cities had proved to be a "keystone" to the "successful academic achievement" needed to overcome the educational vestiges of state-sponsored segregation. J.A. at 74. Finally, the district court agreed with Missouri that the plan should include (e) full day kindergarten and (f) after-school tutoring programs, finding that such programs had been effective in other desegregation plans and would both "provide remediation to those who are victims of past segregation" and attract nonminorities to "integrative experiences at an early age." J.A. at 72-73. The court of appeals affirmed. 807 F.2d at 684-686. This Court denied certiorari. 484 U.S. 816 (1987).

2. To overcome the racial isolation effects of the violation, the court adopted a program of magnet schools. The magnet plan relies upon parental and student choices among educational programs to "redistribute the students within the KCMSD to achieve the maximum desegregation possible" while also "regain[ing] some portion of the white students" that the violation had concentrated outside of the district. 855 F.2d at 1302. The court chose voluntary measures because magnet schools had proved to be "valuable and effective techniques" for reducing racial isolation in desegregation plans across the country and because "[t]he evidence is clear [that] mandatory student reassignment at this time will only serve to increase the instability of the KCMSD and reduce the potential for desegregation." J.A. at 78, 86. Noting Missouri's preference for mandatory busing, the district court set aside \$175,000 for a study of the extent to which additional busing could alleviate the need for magnet schools and invited Missouri, based on the study, to file a motion to substitute busing for magnets. J.A. at 86. Missouri never filed a motion.

Missouri did not object to the district court's order requiring submission of magnet school plans, and its expert witnesses testified that the assignment patterns magnet schools would replace "clearly make neither administrative nor pedagogical sense." Tr. at 423 (June 5, 1986) (Dr. Denis P. Doyle). The State proposed no magnet plan of its own, and its witnesses supported the use of magnet schools to achieve voluntary desegregation. *Id.* at 425. Finding that magnet schools are an "integral part of the district-wide [plan] for improved achievement" and

are necessary to "assist in expanding the desegregative education experience for KCMSD students," the district court ordered implementation of a six-school pilot program and directed the defendants to propose an expanded program. J.A. at 118.

Missouri again proposed no magnet plan. Tr. at 822 (Sept. 18, 1986). At a lengthy hearing on KCMSD's proposal, Missouri's expert witness testified that: magnet schools are "an appropriate approach to reduce minority concentration" in KCMSD; the capacity of the KCMSD plan to increase desegregation in the district through voluntary participation of white children from private schools and surrounding districts was "an attractive" feature; and the district-wide nature of the plan avoided an inequitable aspect of magnet plans operating elsewhere, because no black children would be forcibly displaced from newly "magnetized" and desegregated schools to segregated neighborhood schools. *Id.* at 803-806 (Dr. Doyle). The district court ordered implementation of KCMSD's proposal because the magnet themes were "carefully chosen," the plan "would generate voluntary student transfers" from inside and outside the district "resulting in greater desegregation," and the plan assured equitable treatment of KCMSD's minority children. J.A. at 130-132. The court of appeals affirmed. 855 F.2d at 1303-04. This Court denied certiorari. 490 U.S. 1034 (1989).

3. The district court found that, as a consequence of the defendant's violations and their financial effects, the KCMSD's schools had "literally rotted," "adversely

affect[ing] the learning environment and serv[ing] to discourage [white] parents who might otherwise enroll their children in the KCMSD."¹² J.A. at 219, 237. To cure the resulting racial isolation and reduction in achievement, the district court ordered capital improvements. "The improvement of school facilities," the court found,

is an important factor in the overall success of this desegregation plan. Specifically, a school facility which presents safety and health hazards to its students and faculty serves both as an obstacle to education as well as to maintaining and attracting non-minority enrollment. Further, conditions which impede the creation of good learning climate, such as heating deficiencies and leaking roofs, reduce effectiveness of the quality education components contained in this plan.

J.A. at 89. The court of appeals affirmed. 855 F.2d at 1306 (the "findings of the district court demonstrate that the capital improvements program is essential to assure the quality of education and future success of the magnet

¹² Based on hundreds of hours of testimony, the district court found that the effects of the violations included economic strangulation of the district and, as a result, crumbling infrastructure; peeling paint and plaster; foul odors from rotted, corroded, and unventilated restrooms; roof leaks; broken windows; extremes of heat and cold; deteriorated playground equipment over hard play surfaces; noisy classrooms with no or deteriorated acoustical treatment; inadequate lighting; insufficient classroom, library, and cafeteria space; and faulty electrical and fire safety systems. J.A. at 89, 219. These conditions, the court found, created serious health and safety risks and educational impediments for children and staff. J.A. at 91.

schools necessary to remedy the constitutional violations in the KCMSD"). This Court denied certiorari. 490 U.S. 1034 (1989).

4. Based on findings that the State and city district, but not the suburban districts, had intentionally concentrated black children inside the KCMSD and white children outside the district, the district court concluded that the "nature and scope of the violation" did not justify requiring the suburban school districts to participate in a "mandatory plan . . . beyond the boundary lines of the KCMSD." J.A. at 86 (emphasis in original). Because Missouri was responsible for unlawfully concentrating black children inside and white children outside the KCMSD, however, the district court ordered the State "actively [to] seek the cooperation of each school district [around the KCMSD] in a voluntary interdistrict transfer program" to educate willing black children from the KCMSD in suburban schools. J.A. at 87. See J.A. at 126. The court of appeals affirmed. 807 F.2d at 683-684 (district court properly concluded that the nature and scope of Missouri's violation obligated it to eliminate the segregative effects of its violations and justified an order to "fund the voluntary interdistrict transfer program for that purpose"). Since 1991, two suburban school districts have expressed an interest in participating in such a program. In 1990, Missouri began funding the transfer of ten (now twenty) children annually from the KCMSD to a single suburban district. In 1993, the district court rejected as too expensive a proposal by the plaintiff schoolchildren to fund additional transfers to another district. The court of appeals affirmed. No. 94-1405 (8th Cir. Oct. 13, 1994).

D. Findings that the Violation Segregated Blacks Within the KCMSD and Caused a System-wide Reduction in Educational Achievement in the District

Ranging further beyond the questions on which certiorari was granted, Missouri follows its attack on the remedy's four components as cures for the educational and segregative effects of its violation by questioning the existence of those effects. Because Missouri inaccurately describes the lower courts' findings – and omits mention of its failure to appeal those findings as clearly erroneous – this subsection sets out the relevant findings and procedural history. Evidentiary support for the findings is sampled in the text and footnotes.

1. Missouri “mandated segregated schools for black and white children before 1954” pursuant to state constitutional provisions that permitted and then required segregation of the races. J.A. at 19, *discussing* Mo. Const. 1865, art. 9, § 2; Mo. Const. 1875, art. 11, § 3. Only the largest, most urban districts in the state could afford to operate schools for black children.¹³

¹³ See P. Ex. 210 (Missouri Annual State School Report: “the isolation of colored children . . . under the dual system of education [creates] one of the most perplexing problems in school administration” – how to provide schools for black children “without taking a larger amount” of available funds “than would be right” from “the larger group”); *id.* (“There are not as many colored schools as there should be [because] some school boards . . . feel that these people should not be given a school if it can possibly be avoided”); P. Ex. 54A (Kansas City area school districts with black children omitted them from annual enumerations to avoid responsibility to educate them); Tr. at 3403-20

In order to obtain any education at all for their children, black families “moved out of districts which did not maintain the state-required schools [for blacks] . . . to districts, including the KCMSD, that provided black schools.”¹⁴ J.A. at 19. “[O]nce here [in the KCMSD], blacks settled in the inner city,” where the district’s “segregated facilities with segregated staffs . . . were located.”¹⁵ *Id.* at 21, 24.

Together with numerous other actions by state officials that continued into the 1970s and were “intended to cause housing segregation”, Missouri’s segregation of the schools “had the effect of placing the State’s imprimatur on racial discrimination,” “encouraged racial discrimination by private individuals in the real estate, banking and insurance industries,” and “continues to have significant effect . . . in the Kansas City area.”¹⁶ J.A. at 46. As a direct

(only 6 of 61 black communities in the three Missouri counties surrounding Kansas City had schools for blacks at any time between World War I and 1954).

¹⁴ See P. Exs. 182, 184, 210 (Missouri Annual State School Reports: “lack of school facilities” creates “desire on part of negroes to move to larger cities”); P. Ex. 53E (between 1910 and 1954, the black population of the three counties around Kansas City declined 62%, 77%, and 82%, respectively; the black population of the City increased 177%).

¹⁵ See, e.g., Tr. at 19259 (testimony of Missouri’s expert demographer that creation of “core of blacks” in southeastern Kansas City had “longstanding effects because . . . in-migration [of blacks] tends to focus on the black core”); Tr. at 4444, 14782; P. Ex. 3003A.

¹⁶ See Tr. at 13024-35, *cited*, J.A. at 21 (state’s enforcement of housing segregation requirements until 1953 resulted in “rapid migration of blacks to [the southeast Kansas City] area

consequence, the district court found, "the public schools [in the KCMSD] . . . swell[ed] in black enrollment" and "whites moved out" of the district to the suburbs.¹⁷ J.A. at 21, 28. The "intensity" of the resulting "segregation is demonstrated by the fact that the average black family [in 1984 in the Kansas City area] lives in a census tract that is 85% black while the average white family lives in a census tract that is 99% white." J.A. at 20-21.

The Missouri Constitution continued to require segregated schools until 1976, J.A. at 19, and the sum total of

and . . . rapid outmigration of whites"); Tr. at 13043, *cited*, J.A. at 21 (Missouri Real Estate Board's suspension of license of realtor for "introducing blacks into white neighborhoods"); J.A. at 21 (dual housing market "still exist[ed] to a large degree" in 1984); *id.* at 35 (pursuant to actions of two state relocation agencies during the 1950s-1970s, "blacks were being located primarily in the southeast part of Kansas City while whites were relocated throughout the Kansas City area"); Tr. at 12008-9, *cited*, J.A. at 21 (between 1953 and 1973, the two relocation agencies used realtors serving only either white families buying in white neighborhoods or black families buying in black neighborhoods to relocate 5,000 black and 8,000 white households); Tr. at 11267-68 ("the vast majority of [relocated] blacks [ended up] within the Kansas City School District and the vast majority of whites [ended up] outside the school district . . . in every direction"); P.Ex. 2659 (HUD finding that "racial discrimination practiced in [state urban renewal agency's] relocation programs" was "blatant and flagrant"). J.A. 46 (actions of Missouri housing agencies are partly responsible for the fact that "a large percentage of whites do not want blacks to reside in their neighborhood and a large percentage of blacks do not want to reside in a neighborhood in which they are not wanted").

¹⁷ See, e.g., Tr. at 8715-16, 8721-30, 9228-32, 9234, *cited*, J.A. at 28.

the State's formal response to *Brown v. Board of Education*, 347 U.S. 483 (1954), in the intervening years, was an Attorney General's opinion stating that, if local districts wanted to, they could permit black and white children to attend school together. P.Ex.2322. "[T]he State as a collective agency . . . fail[ed] to affirmatively act to eliminate the structure and effects of its past dual system on the basis of restrictive state law."¹⁸ J.A. at 50.

The district court found in 1984 that the KCMSD "has not entirely dismantled the dual school system." J.A. at 25. See *id.* (schools that were all-black in 1954 remained all-black, many schools that had been predominately white remained so); Ex.K2. In the 30 years after *Brown*, KCMSD's actions "were ineffective in integrating its schools" and eventually had the opposite effect. J.A. at 24. By adopting attendance, curriculum, and personnel policies that assured that KCMSD's schools were either educationally preferable white schools, educationally inferior all-black schools, or in rapid transition from the former to the latter, KCMSD caused white families to flee presumptively inferior schools with even small proportions of black students, eventually causing "white flight from the KCMSD to suburban districts" and private schools involving "a large number of students." J.A. at 126.

¹⁸ See, e.g., P.Exs. 496, 504; Tr.4187-91, 6096-6104 (in post-*Brown* years, State repeatedly rejected measures to reorganize school district boundaries to enhance racial integration and to permit voluntary interdistrict transfers of students to achieve desegregation); Tr.17410-17, 17429-32 (after 1954, Missouri never required a school district to desegregate, never monitored extent of segregation in schools, and never enforced Title VI in schools with respect to race).

In particular, the KCMSD, with at least tacit state approval, acted affirmatively to maintain and extend segregated schools between 1954 and 1984. *See, e.g., id.* at 23-28 (after *Brown* and through 1970's, KCMSD "chose to operate some completely segregated schools" and a few integrated schools in racially transitional areas); Stipulation 12, 39, 42, 43, 48 (during same time period, KCMSD adopted hundreds of attendance boundary changes that removed white neighborhoods from attendance areas of otherwise integrated schools and attached them to adjacent, all-white school attendance areas); J.A. at 25 (KCMSD's transfer policies permitted "whites living in racially transitional neighborhoods to transfer . . . to whiter schools"); *id.* at 26 (KCMSD's insistence that attendance zones never cross Troost Avenue, a traditional dividing line between white and black residential neighborhoods, caused east-of-Troost schools to remain all-black or to change rapidly from all-white to all-black, while west-of-Troost schools remained all-white); *id.* at 27 (in 1960s KCMSD relieved overcrowding at predominantly black schools by "bus[ing] entire classrooms of black students to predominantly white schools but ke[eping] them as an insular group" that was educated in separate classrooms and assigned to a separate lunch period, "not allowing them to be mixed with the receiving population").

At the same time, KCMSD sought to preserve superior educational opportunities for white students for as long as possible while maintaining and exacerbating inferior conditions at predominantly black schools. *See, e.g., J.A.* at 27 (for many years, KCMSD's elementary schools with mostly or all-black enrollments were consistently

overcrowded while predominantly white schools in neighboring areas were consistently underutilized); Tr. at 3298-09, 3304-06 (KCMSD assigned least experienced teachers to black schools, while more experienced teachers were assigned to white schools); Tr. at 7018-21, 7338-41, 8264-65, 8969-71, 9419-20; Stipulation 75 (as high schools' enrollments changed from predominantly white to integrated, and then to predominantly black, KCMSD moved college preparatory courses to white schools, replacing them with vocational offerings such as "janitorial services").

The effect of the district's maintenance of a decreasing number of educationally superior white schools and an increasing number of educationally inferior black schools was to cause white families to flee even the district's few modestly integrated schools. *See, e.g., Tr.* at 5117-18, 6856-57, 6989-70, 7104-08, 7305-20, 14785-86, 15144-50; P. Ex. 1775B-E (schools in southeast corridor east of Troost with increasing black enrollments were, and were perceived by parents to be, educationally inferior, prompting white flight to suburbs); Tr. at 6907-08 (white parents complaining about curricular changes in integrated schools were told to move to suburbs if they were dissatisfied with district's policies); J.A. at 25-28 (attendance zone adjustments, transfer policies, and similarity of attendance zone configurations to racially segregated neighborhoods caused KCMSD's "attendance patterns to continue on a segregated basis" and eventually led whites to "move[] out" of the district); P. Ex. 1,

6-9; Ex. K1, K2; Tr. at 3311-12, 7022-24, 9358-66, 10384-86, 15140-42.¹⁹

Neither Missouri nor the KCMSD appealed the findings that they segregated schools and housing in the Kansas City area from 1865 to 1984 and that their violations concentrated black children inside and white children outside the KCMSD.

2. The district court found that "the inferior education indigenous of the state-compelled dual school system has lingering effects in the [KCMSD]". J.A. at 23. As a result of the defendants' unlawful maintenance of segregation long after *Brown*, KCMSD's schools were characterized by the low achievement of their pupils, which limited employment opportunities, generated feelings of inferiority, reduced aspirations, and thus perpetuated in later generations conditions that impeded effective educational attainment for most of Kansas City's black students. Tr. at 1862-2019 (cited in J.A. at 23), 16414, 16421-22, 16429, 16457-58 (cited in J.A. at 23), 22591-92. "Several witnesses confirmed the conclusion . . . that forced segregation ruins attitudes . . . [,] produces low achievement . . . [and] ultimately limits employment

¹⁹ The district court considered and "rejected" extensive testimony by Missouri's experts that neutral factors such as "economics, accessibility to jobs, spatial barriers, personal preference and private discrimination," and not Missouri's and the KCMSD's intentional segregation, had caused the racial segregation of schools between KCMSD and its neighbors. J.A. at 21. "[I]n the context of Missouri's legacy" of intentional school segregation, the court found, the evidence demonstrated the "influence of [segregated] schools in housing patterns." *Id.*

opportunities and causes poverty."²⁰ J.A. at 23 (record citations omitted).

The district court found that segregation also had "detrimental effects . . . on this school district's ability to raise adequate resources" during the 1960s-1980s. J. A. at 91. *Accord* J.A. at 133. These financial effects of the violation resulted, in turn, in deteriorated school conditions that "adversely affect the learning environment", creating an additional "obstacle to education". J.A. at 88-89. Overall, the violation and its financial effects on the KCMSD produced a "system-wide reduction in student achievement." J.A. at 58.

In rejecting Missouri's appeal of orders implementing the remedy, the court of appeals found "support in the record for the [district] court's findings that segregation and the failure to remove the vestiges of the dual school system contributed to the atmosphere preventing KCMSD from raising necessary funds." 855 F.2d at 1305. A review of the record also convinced the court of appeals that the "vestiges of unconstitutional segregation" in the KCMSD included the "'inferior education' " available to the district's students and a consequent " 'system-wide reduction in achievement' ". *Id.* at 1300. This Court denied certiorari. 490 U.S. 1034 (1989).

SUMMARY OF ARGUMENT

The Court granted certiorari to consider two specific issues arising from the district court's periodic review of

²⁰ See, e.g., Tr. at 1862-2019, 2453-56, 16,393-470, 16,573, cited, J.A. at 23; Tr. at 525-51, 1324-40.

components of its remedy for state-mandated segregation in the KCMSD. Those orders are based on findings of fact that Missouri does not challenge as erroneous; they conform to this Court's doctrines governing termination of school desegregation remedies; and they do not involve an abuse of discretion. For these reasons, and because the orders are contributing to the elimination to the extent practicable of the vestiges of unlawful segregation – and, particularly, because Missouri has not even tried to prove the contrary – the orders should be affirmed.

Evidently realizing that the record below fully supports the orders that, alone, are addressed in the questions on which certiorari was granted, Missouri has filed a brief that impermissibly seeks to substitute different, and far broader, questions for review – e.g., the propriety of the four basic components of the remedy ordered and affirmed below (which this Court declined to review five years ago) and the sufficiency of the evidentiary support for the lower courts' violation and effects findings (which Missouri never appealed when the findings were made seven to ten years ago).

This Court wisely has not undertaken to review the broader propositions proffered by Missouri, because acceptance of those propositions, on the record actually before the Court, would require it to abandon or drastically constrict the basic remedial principles that have guided the Court's desegregation jurisprudence since *Brown II*, 349 U.S. 294 (1955). Missouri, for example, challenges the notion that educational improvements have a place in desegregation remedies, though this Court has repeatedly approved such programs. See, e.g., *Freeman v. Pitts*, 112 S.Ct. 1430, 1443 (1992) (*Freeman*); *Milliken v.*

Bradley, 433 U.S. 267, 287 (1977) (*Milliken II*). See also *Brown II*, 349 U.S. at 301. Missouri asks the Court to stop measuring equitable remedies by their effectiveness, though that has been the measure in school desegregation cases since *Brown II*, 349 U.S. at 300. Accord e.g., *Freeman*, 112 S.Ct. at 1446; *Dayton Board of Educ. v. Brinkman*, 443 U.S. 526, 538 (1979) (*Dayton II*); *Green v. County School Bd.*, 391 U.S. 430, 437 (1968) (*Green*). Missouri advocates restrictions on the remedy that would amount to a retreat from the established principle that the nature and scope of the remedy must carefully track the nature and scope of the actual violation. See e.g., *Hills v. Gautreaux*, 425 U.S. 284, 294 (1976) (*Gautreaux*); *Milliken v. Bradley*, 418 U.S. 717, 744 (1974) (*Milliken I*). And Missouri calls on the Court to withdraw the remedial discretion of lower courts, and to forsake the deference to the lower courts' fact findings, that have long been hallmarks of the Court's approach to school desegregation and other equitable questions. See, e.g., *Columbus Bd. of Educ. v. Penick*, 443 U.S. 449, 455 (1979) (*Columbus*); *Brown II*, 349 U.S. at 300.

As the KCMSD demonstrates in its brief, Missouri's attempted broadening of the questions presented is impermissible. As the schoolchildren demonstrate below, the lower courts – relying on findings that are not challenged here – have consistently stayed well within the bounds of this Court's settled jurisprudence in designing a remedy to match the nature and scope of the violations and their effects. The record in this case does not present the issues with which Missouri seeks to burden the Court and in no way supports the sweeping reexamination of the foundations of school desegregation doctrine that

would be required to credit the challenges Missouri makes to the remedy ordered below.

ARGUMENT

I. THE COURT OF APPEALS PROPERLY APPLIED *FREEMAN* IN RENEWING THE TWO CHALLENGED ASPECTS OF THE DESEGREGATION REMEDY

In the two questions on which certiorari was granted, Missouri asserts that the courts below erred (1) by insisting upon proof of the effectiveness of the educational improvement programs before terminating them and by assertedly making "test scores" the measure of effectiveness, and (2) by ordering salary supplements for non-instructional personnel that do not "relate to the constitutional violation." Pet. at i. The court of appeals, however, appropriately applied *Freeman* in determining that the remedial programs should achieve some (but not a "test scores") measure of success before being terminated and that the evidence "fell far short of establishing that [the] vestiges" of segregation had been eliminated to the extent practicable. Pet.A. at 19. And the court of appeals properly affirmed the specific findings of fact that compelled the district court, applying *Freeman*, to maintain salary adjustments that served "in a feasible and practicable way to . . . redress the injuries caused by unlawful action." *Id.* at 23 (quoting *Freeman*, 112 S. Ct. at 1444). The lower courts thus properly rejected Missouri's arguments because Missouri did not meet (or even attempt to meet)

its burden of proving in the district court that the educational improvements programs had achieved their remedial goal or its burden of proving on appeal that the fact findings compelling the salary supplement extension were clearly erroneous.

A. Missouri Did Not Establish that the Educational Programs Met the *Freeman* Standard for Termination

In seeking to end implementation of the educational improvement programs, Missouri did not even try to meet its burden under *Freeman*. It presented no evidence on whether the vestiges of segregation had been eliminated to the extent practicable nor any evidence of its good faith. Instead, Missouri claimed simply that the programs had been established and that they were fully operational. Pet.A. at 18. The court of appeals accordingly rejected Missouri's request to terminate the educational programs for lack of the proof of practicable effectiveness and good faith that *Freeman* requires, *see*, 112 S.Ct. at 1444, and affirmed the renewal of the programs for one additional year. Pet.A. at 19-21. As the Brief of KCMSD, at 9-17, demonstrates, the court of appeals' order added nothing new to the longstanding equitable requirement that remedial programs eliminate to the extent practicable the vestiges of the violations (here, the violations' demonstrated educational effects and harms on schoolchildren); the court of appeals did not impose any particular measures of that effectiveness, leaving those measures to the parties (including Missouri) to propose and the district court to adopt and apply; and the court of appeals most certainly did not impose "test scores" as the measure (nor even use those words or any reasonable facsimile).

Moreover, as is demonstrated by the Brief of Amici Curiae James Anderson, et al., Appendix at 4-14 (Social Scientists' Statement), once it has been determined – as it has been here – that the plaintiff schoolchildren suffer under a system of "inferior education" caused by unlawful racial segregation, resulting in a system-wide "reduction in achievement", J.A. at 23, 58, educational improvement programs *can* achieve (and in other desegregation plans *have* achieved) measurable progress in eliminating the educational-harm vestiges of the violation.

As the Social Scientists' Statement further reveals, assessing progress in eliminating educational vestiges need not, and should not, rely on any particular measure of educational outputs, and instead can and should draw upon a wide variety of indicators, including "inputs", such as the number of teachers, their training, their attitudes and expectations, books, equipment, supplies, conditions of the schools, and the curriculum, as well as "outcomes", such as attendance, discipline and suspension data, graduation rates, grades, admission to college or post-high school technical training, and post-high school success in finding employment. Brief of Amici Curiae James Anderson, et al., Appendix at 14-19. That *all* the parties to this litigation agree that test scores should *not* be the sole or a determinative criterion by which the effectiveness of educational programs should be measured assures that the bogey Missouri conjures up out of its imagination – namely, that there is some sort of constitutionally mandated minimum test score requirement for children in desegregating schools – simply has no basis in the record of this case.

B. The Salary Supplements Ordered for Non-Instructional Personnel Are Necessary to Effectuate the Remedy and Are Compelled by Fact Findings Not Challenged by Missouri

Missouri also argues that this Court should overturn the district court's 1992 and 1993 salary orders, insofar as they include funding for the salaries of non-instructional personnel, because they allegedly do not cure a condition that was directly caused by the State's constitutional violation. Pet.Br. at 42. The district court's orders, however, are supported by findings of fact and substantial record evidence demonstrating that salaries near market levels are necessary to allow KCMSD to implement the desegregation remedy and that the district's inability to produce revenue sufficient to fund its basic operations (including salaries) was indeed caused in part by Missouri's constitutional violation.

Desegregation funding for an increment of KCMSD salaries has been a longstanding component of the desegregation remedy that the lower courts have found to be necessary to remedy the constitutional violations in this case and that the State has not until recently chosen to appeal. The district court first ordered such relief in 1987. J.A. at 234-35. Although Missouri appealed other aspects of the same order, it did not challenge the court's approval of desegregation funds to bolster KCMSD's ability to attract and retain qualified employees to implement the court-ordered plan. In approving a consensual settlement continuing such relief in 1990, the district court again found, based on the evidence submitted during

four days of testimony prior to the settlement, that maintaining adequate salaries was "essential to comply with the court's desegregation orders." J.A. at 336. Again in 1992, after a four-day hearing, the district court found that without continuing salary relief, KCMSD would "not be able to implement" the desegregation plan. Pet.A. at 86. On appeal, "[t]he State [made] no claims that the district court's findings of fact [were] clearly erroneous," Pet.A. at 23, and the court of appeals affirmed. Pet.A. at 26-27. Again in 1993, the district court took extensive evidence and again concluded that salary relief was "a necessary component of the desegregation program." Pet.A. at 97. The court of appeals again affirmed this finding. Pet.A. at 31.

Missouri claims there is no "legal basis" for allowing desegregation funds to be used to pay salaries for "non-instructional personnel." Pet.Brf. at 42, 49. Missouri entirely ignores two fully sufficient legal bases for such relief, however, and the unchallenged fact findings that make both legal bases determinative here. First, desegregation (like other equitable remedies) requires utilization of ancillary measures that are necessary and proper to assure the effectiveness of the remedy's core programs. E.g., *Hutto v. Finney*, 437 U.S. 678, 687 n.9 (1978), citing *Milliken II*, 433 U.S. at 281. Moreover, in the series of orders cited above, dating back to 1987, the two courts below have found as fact that salary supplements are necessary to the effective implementation of the plan to remedy the "vestiges of segregation." Pet.A. at 23. Missouri's objection thus boils down to one of two equally untenable propositions – that desegregation remedies may justifiably be eviscerated by withholding ancillary

procedures that are absolutely critical to the remedies' effectiveness or that the Court (for no reason shown by Missouri) should ignore the fact findings of two courts below that the non-instructional salary supplements are precisely that critical.

Second, as Missouri concedes, remedial components are permissible, or even required, when they relieve conditions (here the vastly below market salary levels in the KCMSD) that "flow from [a] constitutional violation by the State". Pet.Brf. at 42. What Missouri fails to acknowledge is that the lower courts here *did* find that KCMSD's inability to produce adequate revenue to support its basic operations (including adequate salaries) was caused in part by Missouri's constitutional violation. Pet.A. at 26, 30. *Accord* 855 F.2d at 1305. Even the dissenters from the denial of rehearing *en banc* in the court of appeals recognized that the precipitous decline in local revenues in the KCMSD was "at least in part . . . [a] consequence of the *de jure* segregation." Pet.A. at 51. For these reasons, Missouri's attack on the salary relief ordered for non-instructional personnel should be rejected.

C. The Lower Courts' Focus, *Inter Alia*, on Whether Missouri Demonstrated the Effectiveness of the Two Aspects of the Remedy that it Sought to Terminate Is Wholly Consistent With Longstanding Case Law

Following well-established law, the lower courts reviewed Missouri's proposal to terminate the two aspects of the remedy at issue here under an effectiveness standard. The continuation of the educational programs

was measured in part by whether Missouri had demonstrated the programs' "effect on [the] students" harmed by the violation, Pet.A. at 21, and the salary supplements were measured by whether or not they remained necessary to the effective implementation of the remedial programs. Pet.A. at 88. These standards applied below thus scrupulously conformed to the Court's time-honored admonition to district courts that their remedies be effective to a practical extent. In *Brown II*, the Court required that remedies dismantle segregation in a "systematic and effective manner." *Brown II*, 349 U.S. at 300. In *Green*, the Court held that the obligation of lower courts, "as it always has been, is to assess the effectiveness" of desegregation plans. *Green*, 391 U.S. at 439. The Court reiterated in *Swann v. Charlotte-Mecklenberg Bd. of Ed.*, 402 U.S. 1 (1971) (*Swann*), that proven constitutional violators must "'take whatever steps might be necessary'" to eliminate discrimination, *Swann*, 402 U.S. at 15 (quoting *Green*, 391 U.S. at 437-438), and, in the case accompanying *Swann*, said that the "measure of any desegregation plan is its effectiveness," *Davis v. Board of Sch. Comm'rs*, 402 U.S. 33, 37 (1971). And in *Dayton II*, the Court held that the "measure of post-*Brown I* conduct . . . is the effectiveness, not the purpose," of actions in eliminating the vestiges of state-sponsored segregation. *Dayton II*, 443 U.S. at 538. *Dowell* and *Freeman* continue this legacy, requiring proof by the party seeking to end all or part of a remedy that vestiges of past discrimination have been "eliminated to the extent practicable," *Board of Ed. of Oklahoma City v. Dowell*, 498 U.S. 237, 250 (1991), and that the wrongdoers have "take[n] all steps necessary to eliminate the vestiges" of prior discrimination. *Freeman*, 112 S.Ct. at 1443. Given the unchallenged findings of the two courts below that both aspects of the remedy at issue

here remain necessary to eliminate the educational harms that Missouri's violation has visited on the plaintiff schoolchildren and that those harms have not yet been eliminated to the degree practicable, the *Brown II* - *Freeman* line of cases requires affirmance.

II. THE MEANS THE DISTRICT COURT ADOPTED TO REMEDY THE EFFECTS OF THE CONSTITUTIONAL VIOLATION ARE WELL WITHIN THAT COURT'S AUTHORITY

The discussion in Part I exhausts the legal issues on which certiorari was granted. For the reasons set forth in the Brief of the KCMSD, at 40-49, the Court should reject Missouri's effort to use those issues as an ill-disguised pretext for reopening virtually every factual and legal issue that the remedy, and, indeed, the violation and its effects, might present but that have long since been resolved by the Court's denials of certiorari and by Missouri's failure to appeal. In the remainder of this brief, the plaintiff schoolchildren demonstrate the wisdom of the Court's eschewing review of the issues Missouri tries to smuggle into the case, given the clarity and workability of the Court's longstanding doctrine (which Missouri essentially asks the Court to abandon) and the extensive evidentiary support for, and the comprehensive nature of, the violation and effects findings (which Missouri effectively asks the Court to overturn).

A. Eliminating Educational Harms Caused by State-Sponsored Segregation Is an Appropriate Remedial Focus of a Desegregation Plan

In attacking the educational improvements component of the violation, Missouri suggests that the district

court should have limited its remedial attention to the six *Green* factors – student assignment, faculty, staff, transportation, extracurricular activities, and facilities. Pet.Brff. at 29, citing *Green*, 391 U.S. 430 (1968). Missouri's suggestion offends the Court's established school desegregation jurisprudence.²¹

This Court has never suggested that the *Green* factors represent a comprehensive list of the effects of school segregation that the remedy must seek to cure. Rather, in *Swann* and in later cases, the Court has repeatedly held that the scope of the remedy is determined by the nature and extent of the particular violation and its actual effects, and that district courts have a broad and flexible equitable discretion to fashion remedies. *Swann*, 402 U.S. at 15, 16.²² See, e.g., *Washington State Fishing Vessel Ass'n v. United States*, 443 U.S. 658, 695-696 (1979). The need to match remedies to the infinite variety of violations and effects, and the chancellor's traditional equitable discretion, are inconsistent with Missouri's rigid understanding of the *Green* factors. For just these reasons, the Court has

²¹ It bears remembering that nearly all aspects of the remedy ordered below – the magnet and voluntary interdistrict plans for student assignments, the improvement of school facilities that “literally rotted” as a result of the violation, J.A. 237, and the upgrading of the quality of the faculty assigned to teach the schoolchildren victims of the violation – are encompassed by the six *Green* factors.

²² “Once a right and a violation have been shown, the scope of a district court's equitable powers to remedy past wrongs is broad, for breadth and flexibility are inherent in equitable remedies.” *Swann*, 402 U.S. at 15, quoting *Hecht v. Bowles*, 321 U.S. 321, 329-330 (1944).

explicitly refused to limit the range of effects of unconstitutional segregation that desegregation remedies must correct when feasible. In *Milliken II*, for example, this Court cited *United States v. Montgomery County Bd. of Ed.*, 395 U.S. 225 (1969),

for the proposition that matters other than pupil assignment must on occasion be addressed by federal courts to eliminate the effects of prior segregation. Similarly, in *Swann* we reaffirmed the principle laid down in *Green v. County School Bd.*, 391 U.S. 430 (1968), that existing policy and practice with regard to faculty, staff, transportation, extracurricular activities and facilities were among the most important indicia of a segregated system. 402 U.S. at 18. *In a word, discriminatory student assignment policies can themselves manifest and breed other inequalities built into a dual system founded on racial discrimination. Federal courts need not, and cannot close their eyes to inequalities, shown by the record, which flow from a longstanding segregated system.*

Milliken II, 433 U.S. at 283 (emphasis added).²³

Milliken II went even further, however, resolving precisely the question that Missouri tries to shoehorn into this case, though certiorari was not granted on it, namely, “whether a District Court can, as part of a desegregation decree, order compensatory or remedial education programs for schoolchildren who have been subject to past

²³ The six *Green* factors cannot logically be understood to be exclusive. That they reach such relatively peripheral issues as “extracurricular activities” necessarily implies that they also reach more central issues such as the schools' actual curriculum and educational programs.

acts of *de jure* segregation." *Id.* at 269. Three well established principles dictated the Court's decisively affirmative answer to this question: (1) the nature of the desegregation remedy is to be determined by the nature and scope of the constitutional violation; (2) the decree must be remedial in nature, *i.e.*, designed to restore the victims of discriminatory conduct to the position they would have occupied absent such conduct; and (3) the courts must take into account the practicalities of the situation and the interests of state and local authorities in managing their own affairs, consistent with the Constitution. *Id.* at 280-81.

Based on these principles, the *Milliken II* Court ruled that where, as here, the violation has caused demonstrable educational harms to the plaintiff schoolchildren – where, for example, "children . . . have been . . . educationally and culturally set apart from the larger community [and have] . . . acquire[d] habits of speech, conduct and attitudes reflecting their cultural isolation" – a remedy tailored to those harms is required. *Id.* at 287. The Court held that "[p]upil assignment alone does not automatically remedy the impact of previous, unlawful educational isolation; the consequences linger and can be dealt with only by independent [educational] measures." 433 U.S. at 287-88. Faced with evidence of segregation-induced "reading and speech deficiencies" similar to, if not as extensive as, the harms found in this case, the Court recognized that such harms "cannot be eliminated by judicial fiat; they will require time, patience and the skills of specially trained teachers." *Id.* at 290. The Court, accordingly, approved programs that, *e.g.*, provided in-service training for teachers, guidance and counseling for

students, revised testing procedures, and remedial reading and communications skills programs. *See id.* at 775-760. Before and since *Milliken II*, scores of courts have ordered educational improvement programs to remedy the vestiges of segregation. *See, e.g., Parents for Quality Ed. with Integration, Inc. v. State of Indiana*, 977 F.2d 1207, 1211 (7th Cir. 1992); *Evans v. Buchanan*, 582 F.2d 750, 768 (3d Cir. 1978); *Tasby v. Black Coalition to Maximize Ed.*, 771 F.2d 849, 853 (5th Cir. 1985); *Oliver v. Kalamazoo Bd. of Ed.*, 640 F.2d 782, 787 (6th Cir. 1980); numerous decisions cited in *Milliken II* at 286.

B. The Harms Cured by the Educational Programs Here Are Causally Related to the Violation, and the Programs' Appropriateness Has Not Been Undermined By The Passage of Time

1. Citing *Dowell*, Missouri argues that the "passage of time since the original violation" undermines the "causal link" between the violation and existing educational conditions in the KCMSD." Pet.Br. at 35, citing *Dowell*, 448 U.S. at 249. *Dowell* does not give Missouri the comfort it seeks. In *Dowell*, the Court simply noted that during the twenty-three years between the original finding of *de jure* segregation and the termination of the fully implemented decree, the "passage of time enable[d] the district court to observe the good faith of the school board in complying with the decree."

The situation here is entirely different. First, far from noting the good faith of the State in complying with the decree, the district court's observations have run in

entirely the opposite direction. E.g., Pet.A. at 123 (Missouri "has been extremely antagonistic in its approach to effecting the desegregation of the KCMSD"); J.A. at 136 (Missouri has not voluntarily taken one affirmative act "to aid a school district . . . involved in a desegregation program"). Missouri has not filed a motion for partial unitary status nor presented any evidence to show its good faith, notwithstanding that it has the burden of proof on unitary status. Second, the remedy in this case became fully operational exactly three months ago, not a score of years ago, as in *Dowell*. Third, as the district court found, Missouri's violation in this case was in full swing in 1984, see *supra* pp. 15-20, unlike the *Dowell* violation which ended in 1972. *Dowell*, 498 U.S. at 249. Finally, and most importantly, Missouri simply ignores the findings of both courts below that its violation so thoroughly crippled the KCMSD educationally and financially that a "system-wide reduction in student achievement" resulted, affecting every student in the district's "inferior" educational programs and its "literally rotted" buildings. J.A. at 23, 237. That those educational programs have only this school year been entirely replaced, and that some of those buildings remain under rehabilitation at this very moment, reveals the stark error in Missouri's attempt to antique the violation and its effects and also in Missouri's assertion that "[n]ot one of today's students has attended school in a *de jure* dual system," Pet.Brf. at 36.

2. Citing the Court's opinion in *Dayton Bd. of Ed. v. Brinkman*, 433 U.S. 416, 417 (1977) (*Dayton I*), Missouri argues that plaintiffs have the burden of demonstrating the causal link between existing conditions and past *de*

jure segregation. Pet.Brf. at 34 and n.22. Missouri misstates the governing law. In *Columbus Bd. of Ed. v. Penick*, 443 U.S. 449 (1979), the Court held (as *Dayton I* itself had made clear) that *Dayton I*'s "incremental segregative effects" requirement on which Missouri relies applies *only* when the effects of the violation were themselves merely incremental and *not* system-wide. "In *Dayton I*, only a few apparently isolated discriminatory practices had been found, yet a system-wide remedy had been imposed without proof of a system-wide impact." *Columbus*, 443 U.S. at 465-66. *Columbus*, *Dayton I*, and also *Dayton II* make clear that in cases, such as this one, in which a system-wide violation has been found, the "incremental segregative effects" standard is inapplicable. In such cases, if the proven wrongdoer seeks to change or end the remedy, that party bears the burden of showing that continuing conditions of the sort the system-wide violation was found to have caused are no longer the effect of the violation. *Dayton II*, 443 U.S. at 540-541; *Columbus*, 443 U.S. at 465-468; *Dayton I*, 433 U.S. at 420. Missouri did not appeal as clearly erroneous the district court's finding that the effects of the violation here were system-wide.

3. Missouri embarks on a long and confusing exegesis of the term "vestige" and of the degree to which existing conditions must be the product of the violation. Pet.Brf. at 33-35. Its argument is both factually and legally misguided. On the factual side, every effect of the violation that Missouri has been called upon to cure is a direct (and in most cases an actually intended) effect of the violation - including, racially segregated schools; inferior educational programs in the particular schools, and eventually, in the district in which African-American children

were unlawfully concentrated, a refusal on the part of most white parents and students to attend those inferior schools and, eventually, to remain in that systemically inferior district; and a refusal on the part of white taxpayers to support those schools and that district, with the result that the district's physical plant could not be maintained and "literally rotted."

Midway through Missouri's exegesis, it pauses to say that "the vestiges of the violation that federal courts have a mandate to alleviate . . . must not only have been caused by the dual school system in a 'but for' sense, but also have been a part of that dual system." Pet.Br. at 34. Missouri nowhere explains what it means for a vestige to be "a part of that dual system," and it proffers no citation in support of its enigmatic proposition. Missouri leaves the suspicion, however, that it means to suggest that, having unconstitutionally caused harmful educational and other effects, and (as the district court found in regard to Missouri) having "not taken one affirmative act" to overcome those effects, J.A. at 136, a constitutional violator may avoid any remedial duty by simply waiting until the violations' initial effects are replaced by subsequent ones – as, for example, when segregation-induced white flight leads to financial strangulation that causes school buildings to crumble. If this is, indeed, what Missouri means, its argument runs directly afoul of the Court's holding in *Columbus* that "[e]ach instance of a failure to fulfill th[e] affirmative duty [to eliminate the immediate effects of the violation] continues the violation of the Fourteenth Amendment." *Columbus*, 443 U.S. at 459. See also *United States v. Fordice*, 112 S.Ct. 2727, 2735 (1992) ("If state has not discharged [its] duty, it remains

in violation of the Fourteenth Amendment."). Whether intended or not, that is, each new effect of the wrongdoers' failure to eliminate the vestiges of segregation is (in Missouri's words) "a part of th[e] dual system." *Accord Dayton II*, 443 U.S. at 538 ("the measure of the post-*Brown I* conduct of a school board under an unsatisfied duty to liquidate a dual school system is the effectiveness, not the purpose, of the actions in decreasing or increasing the segregation caused by the dual system"). Missouri, thus, cannot find refuge in the fact that, having established a segregated school system, it then did nothing in the decades after *Brown* to eliminate the effects of its violation and instead allowed those effects to fester, expand, and spread.

4. Scouring the record to find something positive it did to encourage desegregation after 1954, when it explicitly ceded to local school districts the decision whether or not to desegregate, see *supra* at pp. 16-17, Missouri has uncovered only a single instance. Even here, it distorts the record. In its brief, Missouri reports a finding by the district court that the State undertook "substantial" efforts to assist formerly segregated districts. Pet.Br. at 6 n.6, citing J.A. at 29-30. What the district court actually found is *not* that Missouri had been of "substantial" help to school districts, but that it had been of "some" help. *Id.* That help consisted of distributing a total of \$85,000 a year in federal money among those of its 546 school districts that had been charged with racial discrimination under Title VII, while explicitly eschewing all responsibility for helping schools that were trying to desegregate. See testimony of Walker, Tr. at 17663, cited, at J.A. at 29-30. Missouri's "substantial efforts to assist formerly

segregated districts" thus turns out to be assistance to districts *defending* against racial discrimination claims, not those trying to eliminate the vestiges of segregation. Tr. at 17825-27. The district court's direct finding on point controls: Missouri has not voluntarily taken "one affirmative act . . . to aid a school district that is involved in a desegregation program." J.A. at 136.

C. The Use of Magnet Schools to Remedy the Segregative Vestiges of the Violation Is Appropriate

Missouri challenges the magnet schools component of the remedy, though that component is not remotely related to either of the questions on which certiorari was granted. Because the courts below carefully "tailored" this aspect of the remedy to cure the "'condition that offends the Constitution,'" *Milliken II*, 433 U.S. at 282, quoting *Milliken I*, 418 U.S. at 738, its implementation presents no issue deserving of the Court's attention.

Missouri did not appeal the original order requiring preparation of plans for magnet schools, J.A. at 78; it presented expert testimony praising the attractiveness, equitable features, and district-wide nature of KCMSD's magnet plan which the district court thereupon adopted; it failed to present an alternative magnet plan; and it failed to follow through on its alternative proposal to pursue desegregation through mandatory busing. See *supra* at pp. 10-11. The court of appeals affirmed the magnet plan, 855 F.2d at 1304, and this Court denied certiorari, 490 U.S. 1034 (1989). Without explaining why it should be permitted to do so – not having presented the

issue in its certiorari petition – Missouri now proposes to have the Court revisit the issue. Pet.Br. at 27. The Court should decline the invitation.

As Missouri acknowledges, the district court found that the violation caused "white flight from the KCMSD to suburban districts" and private schools involving "a large number of students." J.A. at 126. As is discussed *supra* pp. 15-16 and n.16, some of this white flight occurred when Missouri literally paid for thousands of white families to leave potentially integrated neighborhoods in the KCMSD, through its agencies' "blatantly" racially-steered relocations of persons displaced by urban renewal and highway construction. The rest of the white flight occurred between 1954 and 1984 when the KCMSD systematically divided its schools into a shrinking number of educationally and physically superior facilities for whites, an expanding number of educationally and physically inferior and overcrowded facilities for blacks, and a small set of "integrated" facilities that in fact were in rapid transition from educationally preferred white schools to educationally disadvantaged black schools. The KCMSD precipitated this racial transition of its schools by inviting white students in integrated facilities to transfer to white schools and by repeatedly detaching white neighborhoods from the attendance zones of integrated schools and reattaching them to those of white schools. Once the district as a *whole* became "integrated," however, whites had nowhere to go, in flight from the inferior schools that they (for the most part accurately) associated with a racially integrated condition, and they then left for the suburbs and private schools. See J.A. at 21-28.

Missouri never appealed as erroneous the district court's various findings in this vein, which are summarized *supra* pp.15-20. Notwithstanding that fact, the court of appeals affirmed those findings in the course of considering whether to approve the magnet and capital improvements components of the remedy. 855 F.2d at 1304-05. Now, belatedly, the State mounts two attacks on the findings – (1) that there is a "lack of factual support for the assumption that 'white flight' is a vestige of *de jure* segregation"; and, in any event, (2) that white flight "cannot, as a matter of law, be deemed a vestige of segregation." Pet.Brff. at 38.

Missouri's first, factual, assertion falls afoul of the rule that this Court will not generally revisit the mutually reinforcing findings of two federal courts below (especially when certiorari was neither requested nor granted on the issue). See, e.g., *Goodman v. Lukens Steel, Co.*, 482 U.S. 656, 665 (1987). Even more importantly, Missouri's argument flies in the face of the overwhelming record support for the district court's numerous white flight findings (which the State, of course, cannot avoid by calling them "an assumption"). See *supra*, pp.15-20 (collecting the relevant findings). Plaintiffs put on several expert witnesses and numerous white former citizens of the KCMSD to describe precisely how the defendants' violations relocated or propelled white families out of the districts' schools. E.g., Tr. at 4845-51, 5117-18. The district court cited passages from those same witnesses' testimony in making the findings that Missouri now seeks to challenge. E.g., J.A. at 28, citing Tr. at 8715-16, 8721-30, 9228-32, 9235.

Missouri's second, legal, assertion – that white flight cannot as a matter of law be a vestige – has no support in

the case law, and Missouri musters none by way of citation. Why one means of distributing white and black students into separate schools is any more constitutionally privileged than another means – when both are the effect of intentional discrimination, followed by a failure to dismantle the conditions, e.g., inferior schools for blacks, that the discrimination caused – is beyond comprehension. Missouri itself relies heavily on *Green v. County Sch. Bd.*, 391 U.S. 430 (1968), yet *Green* holds that the resistance of whites to attending schools previously identified as "for blacks" and inferior is, indeed, a vestige of segregation that the constitutional violator must eliminate to the extent practicable. *Green*, 391 U.S. at 441. See also *Monroe v. Board of Comm'rs*, 391 U.S. 450 (1968). Why the *Green* principle would apply any differently when it is an entire district full of predominantly black schools, rather than individual facilities, that are involved, is, again, beyond comprehension.

Missouri relies, finally, on a set of findings the district court made, early in the proceedings, in dismissing the suburban school districts from any mandatory participation in a school desegregation remedy. See Pet.Brff. at 38. The district court's absolution of the suburban school districts of any responsibility for drawing white students out of the KCMSD, however, is in stark contrast to the court's subsequent assignment of that responsibility to Missouri. See J.A. at 21, 28, 46, 126. That the district court's remedy focuses (in modest part) on the voluntary attraction of white suburban and private school students back into KCMSD's schools to replace those the violation propelled out of KCMSD's schools is a careful, and entirely unexceptional, application of the established

principle that "the nature of the violation determines the scope of the remedy." *Swann*, 402 U.S. at 16. *See infra* pp. 47-49.

III. THE TWO GOALS OF THE REMEDY - TO DESEGREGATE AND TO ALLEVIATE EDUCATIONAL HARMS - ARE PRECISELY TAILORED TO CURE THE EFFECTS OF THE VIOLATION

Evidently motivated by the weakness of its attacks on the remedy, Missouri ranges yet further beyond the questions presented to attack the violation and effects findings that underpin the remedy. For the reasons set out in the KCMSD's brief at 41, these attacks are not properly before the Court. Nor, for the reasons set out below, are the attacks worthy of the Court's attention. Most particularly, Missouri's attempt to make the remedy appear excessive by downplaying the significance of its violations and their effects is contradicted by extensive findings of the district court and the substantial record below.

As noted, the governing principle in the post-liability stage of a school desegregation case is well settled. The scope of the remedy is determined by the nature and extent of the constitutional violation. *Swann*, 402 U.S. at 16 (1971). The remedy ordered here scrupulously adheres to this principle because it is carefully tailored to address the dual effects of the State's and the KCMSD's constitutional violations - namely, (1) the concentration of African-American children inside and white children outside the KCMSD's schools and creation of numerous racially isolated schools within KCMSD, and (2) a system-wide reduction in the quality of KCMSD's schools. Each of

these sets of effects accounts, in turn, for one of the remedy's two overarching goals - to desegregate the district's schools and to improve the educational lot of the district's students to the extent necessary and practicable to remedy the violations. Nothing Missouri says detracts from the symmetry between the effects of its violation and the remedial steps ordered below to cure those effects.

1. Missouri opines that all "demographic shifts in population primarily reflect private decision-making," citing *Freeman*, 112 S.Ct at 1148, and argues that "attempts to counteract those shifts" through desegregation remedies are improper. Pet.Br. at 25. The quotation from *Freeman* on which the state relies, however, is premised upon determinations that the *particular* population shifts at issue there were a "product not of state-action but of private choices." *Freeman*, 112 S.Ct. at 1448. *See also Pasadena City Bd. of Ed. v. Spangler*, 427 U.S. 424, 436 (1976).

The facts here are quite different. First, the district court made a comprehensive series of findings, supported by extensive expert, lay, and documentary evidence, that Missouri's and the KCMSD's violations were responsible for demographic shifts. *See supra* pp. 15-20. Second, after hearing weeks of testimony, the district court strongly rejected Missouri's factual contention that neutral demographic changes, rather than state-

sponsored segregation, caused KCMSD's schools to "swell in black enrollment". J.A. at 21.²⁴

Third, in *Freeman*, during the seventeen-year period after discrimination had ceased and the remedy had gone into effect, black enrollment increased from 5.6% to 47%, revealing the ongoing effect of neutral forces apart from the violation. *Freeman*, 112 S.Ct. at 1438. Here, by contrast, once the violation ceased and the remedy went into effect, so, too, did the demographic shifts cease. Thus, in the 30 years between *Brown* and the commencement of the remedy, KCMSD's black enrollment increased steadily from 18.9% to 67.7%, whereas in the eleven years since the remedy began, KCMSD's black enrollment has increased *almost not at all*. See *supra* p. 4 and n.8. The only major demographic change since the remedy was imposed, therefore, is that the massive white flight caused by the violations in the 1950s, 1960s, 1970s, and early 1980s (J.A. at 21, 28, Ex.K2) ended with the implementation of the remedy in the late 1980s. See Pet.A. at 129 (district court's finding that magnet schools had positive impact upon "residential choices of Kansas Citians"); KCMSD Exs. 2B, 3, 4, 5, 10; Tr. at 36-81 (Jan. 25, 1993)

²⁴ The district court found:

Missouri defended with experts whose opinions declared economics, accessibility to jobs, spacial barriers, personal preference and private discrimination were factors affecting black movement. They all discounted or totally rejected schools and the dual school system as having any effect. To the extent those experts deny the influence of schools in housing patterns, particularly in the context of Missouri's legacy, their opinions are rejected.

J.A. at 21 (record citations omitted).

(magnet schools have reduced racial isolation by attracting into the district's schools hundreds of white children who otherwise would have attended elsewhere).

2. Missouri asserts that the district court "rejected plaintiffs' claims that Missouri had fostered residential segregation." Pet.Br. at 6. The opposite is more nearly accurate. The district court: repeatedly identified "schools and the dual school system as having an[] effect . . . [on] housing patterns"; found "an inextricable connection between schools and housing"; found that Missouri's school segregation violations caused black families to "move [] out of districts which did not maintain the state-required schools ... to the KCMSD [which] provided black schools"; and, found that the State's and the KCMSD's violations in the post-*Brown* period caused "a large number of [white] students" to move out of the district. J.A. at 21, 28, 126. Additionally, the district court found: that Missouri had so "encouraged racial discrimination by private individuals in the real estate, banking, and insurance industries" that liability for the resulting school segregation was a "very close question if it hinged solely on [this] encouragement of private discrimination"; that Missouri's encouragement of race discrimination "has and continues to have a significant effect on the dual housing market in the Kansas City area"; and that the State-sponsored dual housing market "caused the public schools to swell in black enrollment" and "still exists to a large degree today". J.A. at 46, 21.

3. Missouri also argues that an aspect of the remedy's desegregation goal, attracting voluntary student enrollment from suburban districts, violates the limitations on interdistrict remedies in *Milliken I*. Pet.Br. at 28

n.18, 31-32. In fact, the guiding principle of *Milliken I* – that the “scope of the remedy is determined by the nature and extent of the constitutional violation,” *Milliken I*, 418 U.S. at 744 – has served as the district court’s lodestar in designing the remedy. J.A. at 55 (citing *Milliken I*). Here, as in *Milliken I*, the district court declined to impose a remedy upon autonomous suburban school districts because those districts had themselves not caused any segregation. J.A. at 15. Instead, the remedy has been carried out exclusively by the two proven constitutional wrongdoers, Missouri and the KCMSD, and the remedial acts of those parties have all taken place exclusively within the boundaries of the KCMSD. It is true that, as the Court explicitly permitted in *Hills v. Gautreaux*, 425 U.S. 284, 298 (1976), relying on *Milliken I*, the remedy has some effects outside the boundaries of KCMSD. But those effects are entirely on children who voluntarily choose to transfer to the KCMSD. Missouri is simply wrong, therefore, when it says without record citations that the remedy, therefore, requires it to exercise “authority over the local autonomous [suburban] districts.” Pet.Br. at 28 n.18. Rather, precisely as *Milliken* dictates, the nature and scope of the remedy’s modest and wholly consensual effects outside the district are precisely commensurate with the nature and scope of the violation and its effects. Having found that violations by Missouri and KCMSD caused whites to flee to the suburbs, J.A. at 126, the district court designed a remedy “aptly tailored to remedy the consequences of the constitutional violation,” *Milliken II*, 433 U.S. at 287, by using voluntary transfers to “regain some portion of the white students who fled the

district”, 855 F.2d at 1302. Because the desegregative burden falls entirely on the constitutional violators and impinges not a single iota on the autonomy of innocent suburban districts and their students, Missouri’s *Milliken I* argument is without merit.

IV. MISSOURI PROVIDES NO BASIS FOR INTERFERING WITH A REMEDIAL PROCESS THAT IS WORKING IN AN APPROPRIATE AND ORDERLY FASHION TOWARDS AN EFFECTIVE AND TIMELY CONCLUSION

Both courts below found that Missouri and KCMSD discriminated against African-American children for the six score years between the Civil War and 1984, and that the violation concentrated African-American children within the KCMSD’s systematically under-funded, deteriorated, and educationally inferior schools and depressed the educational attainment of the children in those schools. Both courts below thereafter found that eliminating those segregative and educational-harm vestiges to the extent practicable required educational improvements, magnet schools, capital improvements, and a modest voluntary interdistrict transfer plan. For the first time this school year, the remedy is fully operating. Because initial evaluations have shown that the remedy is working, the district court has directed the parties to begin planning to terminate the remedy. Nothing Missouri says in its brief provides any basis for interfering with this orderly process, or curbing the district court’s equitable and remedial discretion, or overturning the district court’s and the court of appeals’ reenforcing fact findings, or for modifying the Court’s long-established

and recently reaffirmed doctrine pursuant to which the lower courts' discretion has been exercised and their fact findings have been made.

CONCLUSION

For the reasons set forth above, the writ of certiorari should be dismissed as improvidently granted or, alternatively, the decisions below should be affirmed.

Respectfully submitted,

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